



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

December 12, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 21488
(FIRST REVISION)

EXPIRATION DATE: 2028-11-30

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: American Labelmark Company Inc.
Chicago, IL
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the manufacture, mark, sale, and use of the specially designed combination packagings for transportation in commerce of the materials listed in paragraph 6 without hazard labels or placards. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. In accordance with 49 CFR 107.107(a) party status may not be granted to a manufacturing permit. These packagings may be used in accordance with 49 CFR 173.22a.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.13(a) in that Division 5.2 and toxic inhalation hazard (TIH) materials are not authorized; 173.13(b) in that passenger-carrying aircraft is not authorized for certain materials; 173.13(c)(1)(ii) in that the inner packaging(s) must be surrounded by a hermetically sealed barrier bag; and 173.13(c)(1)(iv) and 173.13(c)(2)(iii) in that an inner fiberboard box must be used.

Tracking Number: 2024104003

5. BASIS: This special permit is based on the application of American Labelmark Company Inc. dated September 27, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Flammable, liquids ¹	3	As appropriate	I, II, or III
Flammable solids ^{1, 2, 3}	4.1	As appropriate	II, or III
Pyrophoric Materials ⁴	4.2	As appropriate	I
Self-heating materials ^{1, 3}	4.2	As appropriate	II, or III
Dangers When Wet materials ¹	4.3	As appropriate	I, II, or III
Oxidizers ⁴	5.1	As appropriate	I, II, or III
Organic peroxides ^{1, 2, 3}	5.2	As appropriate	N/A
Toxic materials ^{1, 4}	6.1	As appropriate	I, II, or III
Corrosive materials ¹	8	As appropriate	I, II, or III
Miscellaneous hazardous materials ¹	9	As appropriate	II, or III

1 – Only hazardous materials permitted to be transported aboard a passenger-carrying aircraft by Column (9A) of the Hazardous Materials Table in § 172.101 are authorized for transport aboard passenger-carrying aircraft; only hazardous materials permitted to be transported aboard a cargo

aircraft by Column (9B) of the Hazardous Materials Table in § 172.101 are authorized for transport aboard cargo-only aircraft.

2 – Excludes Type A, B, and C Materials.

3 – Excludes materials which require temperature control.

4 – As restricted by paragraphs 7.c. and 7.d.

7. **SAFETY CONTROL MEASURES:**

a. **PACKAGING:**

(1) Liquid hazardous material must be placed in tightly closed glass, metal, or plastic inner packaging(s) with a total capacity not exceeding 1.2 L. The inner packaging(s) must be sealed and must be compatible with the product. Inner packaging(s) must have sufficient outage to that they will not become liquid full at 55 °C. The net quantity (measured at 20 °C) in the inner packaging(s) shall not exceed 1 L;

(2) Solid hazardous materials must be placed in tightly closed glass, metal, or plastic inner packaging(s). The gross quantity of material in the inner packaging(s) shall not exceed 1.55 kilograms for Division 4.2 and TIH materials or 1.85 kilograms for all other materials. The inner packaging(s) must be sealed and must be compatible with the product;

(3) Materials in Division 4.2 may not be packaged in plastic inner packaging(s);

(4) Inner packaging(s) material must be:

(i) Surrounded by non-reactive absorbent material in sufficient quantity to completely absorb the entire contents of the inner packaging(s).

(ii) Placed in a 3-liter open head plastic intermediate packaging, as described in the application on file with the Office of Hazardous Materials Safety (OHMS), with a sufficient quantity of non-reactive filler material to immobilize the inner packaging(s) and fill all void spaces;

(iii) The intermediate packaging must be sealed in accordance with the manufacturer's closure instructions;

(5) The intermediate packaging must be placed in a fiberboard frame insert with a minimum burst test of 275 lbs., then into a 2-mil polyethylene gusseted bag, hermetically sealed with a tie. The bag must then be placed in a UN4G or UN4GV fiberboard outer packaging with a minimum bursting test of 200 lbs. and then sealed with tape in accordance with the manufacturer's closure instructions.

b. TESTING:

(1) The completed package, assembled as for transportation and with the inner packaging(s) filled 98% full with liquid must be successfully tested in accordance with 49 CFR Part 178 at the Packing Group I performance level.

(1) For Division 4.2, Packing Group I and TIH materials, the intermediate packaging with inner packaging(s) filled 98% full must be successfully tested in accordance with 49 CFR Part 178 at the Packing Group I performance level.

(2) For TIH and pyrophoric materials, the intermediate packaging must be capable of withstanding a pressure differential of 100 kPa.

(3) For transportation by aircraft, the completed package must be offered in accordance with § 173.27(c) of the HMR.

c. ADDITIONAL SAFETY CONTROL MEASURES FOR MATERIALS TOXIC BY INHALATION: The following provisions are applicable to materials meeting the definition of "material toxic by inhalation" in § 171.8 that are packaged in accordance with the requirements of this special permit:

(1) Each package must be marked "INHALATION HAZARD" in letters at least 12.0 mm (one-half inch) high on a contrasting background in close proximity to the marking specified in paragraph 8.f.

(2) Shipping papers must contain notation "TOXIC INHALATION HAZARD" in addition to the shipping paper requirements of Subpart C of Part 172.

(3) These hazardous materials are not authorized for transportation aboard cargo-only or passenger-carrying aircraft.

d. MATERIALS THAT MAY NOT BE TRANSPORTED BY PASSENGER-CARRYING AIRCRAFT:

- (1) Materials that meet the definition of “material toxic by inhalation” in § 171.8 (any zone).
- (2) Materials that meet the definition of an oxidizer at the Packing Group I level in accordance with § 173.127(b)(1)(i).
- (3) Materials that meet the definition of a pyrophoric material at the Packing Group I level in accordance with § 173.124(b)(1).

8. SPECIAL PROVISIONS:

- a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this special permit for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this special permit.
- b. A person who is not a holder of this special permit, but receives a packaging covered by this special permit, may reoffer it for transportation provided no modification or change is made to the packaging and it is offered for transportation in conformance with this special permit and the HMR.
- c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- d. Each packaging manufactured under the authority of this special permit must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by OHMS for a specific manufacturing facility.
- e. A current copy of this special permit must be maintained at each facility where the packaging is manufactured under this special permit. It must be made available to a DOT representative upon request.
- f. MARKING and LABELING:
 - (1) Each package shipped under this special permit must be marked “DOT-SP 21488 – NO HAZARD LABELS REQUIRED” in letters at least 12.0 mm (one-half inch) high on a contrasting background in proximity to required DOT markings.

(2) Each package that is offered for transportation which contains a material that is not authorized aboard a passenger-carrying aircraft by Column (9A) of the Hazardous Materials Table in § 172.101 must bear a CARGO ONLY AIRCRAFT label.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo-only aircraft with restrictions (see paragraph 7.c.), and passenger-carrying aircraft with restrictions (see paragraph 7.d.).
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this special permit. For transportation by motor vehicle, a Quick Response (QR) code and URL linking to this special permit may be marked on each package in lieu of a current copy of this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: KH